Huba Voice Assistant

Legal & Regulatory Compliance Roadmap

Romania — GDPR, Telecom & EU AI Act

Prepared July 2026

A Hungarian-language, phone-based AI voice assistant

Where This Project Stands

This is worth saying plainly, before any checklist: a phone-based, Hungarian-language voice assistant that needs nothing but an incoming phone call to use — no app, no smartphone literacy, no internet connection on the caller's end — has real value for exactly the people most often left out of “digital” solutions. Older callers, isolated people, and the Hungarian-speaking community in Romania specifically stand to benefit from a tool that meets them on a plain phone call rather than requiring an app download or a foreign-language interface.

The compliance work that follows is not a reason to doubt that value — it is what turns a personal prototype into something that can be offered responsibly to other people. A working prototype already exists: real-time speech transcription, a conversational AI reply engine with memory across a call, and natural-sounding spoken responses, all functioning end to end. What remains is the legal and regulatory groundwork to move from “works when I call myself” to “ready for a real caller.”

> This document is an accurate map of that groundwork. It is not legal advice, and it does not replace a review by a Romanian lawyer with GDPR and AI Act experience — see the disclaimer at the end of each section.

Which Legal Frameworks Apply

1. GDPR, enforced in Romania by ANSPDCP

Voice audio and transcripts are personal data the moment they can be linked to an identifiable person — which a phone call obviously allows. If a conversation touches sensitive subjects (health, emotional state, relationships — exactly the kind of territory a free-flowing conversation can drift into), that data can qualify as a GDPR “special category,” which requires a stronger legal basis, typically explicit consent. Beyond content sensitivity, every call currently routes audio and text to three separate US-based processors (Google for the reply engine, Deepgram for transcription, Microsoft for the synthesized voice), each of which needs its own lawful basis for the international data transfer.

2. Romania's call-recording law (Law 506/2004)

Romania is a one-party-consent jurisdiction: a participant in a call — which the assistant itself effectively is — may record without needing the other party's separate consent, and this has been upheld by Romania's High Court in labour-dispute contexts. This covers the narrow legal question of whether recording itself is permitted. It does not cover what GDPR separately requires for what happens to that recording afterward — transcribing it, sending it to third-party AI services, and storing it are distinct obligations layered on top.

3. ANCOM (Romania's telecom regulator)

Law 506/2004 separately bans automated/robocall systems for commercial communications without prior express consent from the person being called. This does not apply so long as the assistant only answers calls a person initiates themselves and never originates outbound calls. That boundary is worth treating as a firm design constraint rather than something to revisit casually, since crossing it brings in a materially stricter consent regime.

4. The EU AI Act — Article 50 transparency obligations

This is the most time-sensitive item. Article 50's transparency obligations become enforceable EU-wide on 2 August 2026. For a voice-based conversational AI, this requires a clear, audible disclosure at the very start of every interaction that the caller is speaking with an AI system — not implied, not buried in fine print, actually spoken aloud before or as part of the greeting. Non-compliance penalties run up to €15 million or 3% of global turnover.

What Needs To Be Done, In Order

- **1. Add the AI-disclosure opening line**

  The single most concrete and time-sensitive fix. Every call should open with a clear, spoken statement — for example, “Szia, egy AI asszisztenssel beszélsz” — before or as part of the existing greeting. This is a small code change, not a policy project, and should be treated as the first thing to close given the 2 August 2026 deadline.

- **2. Establish a GDPR lawful basis and caller notice**

  Given how personal these conversations can become, the safer path is treating this as requiring real consent rather than “legitimate interest.” In practice: a short spoken or otherwise clear notice up front covering what is collected, that it is processed by AI, and that continuing the call constitutes agreement — or, more robustly, an explicit opt-in step before the AI conversation begins.

- **3. Set a data retention and deletion policy**

  Locally saved debug audio files currently accumulate indefinitely with no expiry. This needs to become a defined rule — for example, delete once a call is successfully transcribed, or delete after a fixed number of hours. The same principle applies to any conversation transcripts or logs kept going forward.

- **4. Put data processing agreements in place with each third-party processor**

  A paperwork step rather than a code one: confirming each provider's standard Data Processing Agreement and EU data transfer mechanism (most major US providers rely on the EU-US Data Privacy Framework, but this should be confirmed individually for Google, Deepgram, and Microsoft rather than assumed).

- **5. Conduct a Data Protection Impact Assessment before wider rollout**

  The formal GDPR mechanism for exactly this situation — a system that may incidentally collect sensitive personal data through open-ended conversation. This should happen before the assistant is made available to anyone beyond personal testing.

- **6. Keep the system inbound-only**

  As long as the assistant only answers calls people dial themselves and never originates outbound calls, ANCOM's stricter robocall-consent rules do not apply. This should be treated as a hard boundary in the system design, not a default that might quietly change later.

- **7. Get a real legal review**

  Everything above is an accurate map of the terrain, but a Romanian lawyer with GDPR and AI Act experience should review the actual implementation before it goes anywhere near real users — particularly since AI Act enforcement guidance is still actively being clarified this year.

None of this needs to happen before further private testing. It is the complete, honest list for turning this from a personal prototype into something that could genuinely be offered to the community it was built for.

Sources

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